

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS****Index No.: 703828/2015  
SECOND AMENDED  
SUMMONS****OSAMA E. METWALLY,****Plaintiff,****-against-****Plaintiff designates  
Queens County as the  
place of trial.****THE CITY OF NEW YORK, THE NEW YORK  
CITY POLICE DEPARTMENT and POLICE  
OFFICERS IBALLYS STARLING and  
YUSEFF HAMM,****Defendants,****The basis of venue is:  
Location of Incident  
Per CPLR § 504(3)****To the above named Defendant(s)**

**YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the Plaintiff a copy of your answer, or, if the complaint is served with this summons, to serve a Notice of Appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of you failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.**

**Plaintiff designates Queens County as the place of venue based on where the Defendant resides and the incident occurred.**

**Dated: New York, New York  
May 12, 2019**  
**REHAN NAZRALLI, ESQ.  
Attorney for the PLAINTIFF  
305 Broadway, 14th Floor  
New York, New York 10007  
Phone No.: (212) 897-5882****Defendants Address:  
THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007****NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, New York 10038****P.O. IBALLYS STARLING  
Precinct 111****P.O. YUSEFF HAMM  
Personnel Bureau, Candidate Assessment**

**45-06 215<sup>th</sup> Street  
Bayside, NY 11361**

**235 East 20<sup>th</sup> Street  
New York, New York 1000**

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS**

-----X  
**OSAMA E. METWALLY,**

**Plaintiff,**

**Index# 703828/2015**

**-against-**

**SECOND AMENDED  
VERIFIED COMPLAINT**

**CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT and POLICE OFFICERS  
IBALLYS STARLING and YUSEFF HAMM,**

**Defendants,**  
-----X

**NOW COMES** the Plaintiff, **OSAMA E. METWALLY**, by and through his attorney,  
**REHAN NAZRALI, ESQ.** as and for his complaint against the Defendants, and respectfully  
shows to this Court and allege as follows:

**VENUE:**

1. Venue is proper that in that Defendants are located within and a substantial part of the events giving rise to the claim occurred within the boundaries of this venue.

**JURISDICTION:**

2. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988, and the Laws of the State of New York.

3. The jurisdiction of this court is predicated upon 28 U.S.C. §1331, §1343(a)(3) and (4), §1367(a) and the doctrine of pendant jurisdiction.

**PARTIES:**

4. That the Plaintiff, **OSAMA E. METWALLY** (Hereinafter "Plaintiff") is presently a resident of the City of New York, County of Bronx and the State of New York.
5. At the time of the incident, the Plaintiff was a resident of the City of New York and State of New York.
6. Upon information and belief, that at all times, **THE CITY OF NEW YORK** (hereinafter referred as the "**CITY**"), was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
7. Upon information and belief, that at all times, the defendant **CITY** its agents, servants and employees operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendant Police Officers of the 106th Precinct **OFFICERS IBALLYS STARLING and YUSEFF HAMM**.
8. Upon information and belief, at all times hereinafter mentioned, and on or prior to January 23, 2014, Defendants, **POLICE OFFICERS IBALLYS STARLING and YUSEFF HAMM**, were employed by the **CITY and NEW YORK CITY POLICE DEPARTMENT**, as police officers.

9. That William J. Bratton is the Police Commissioner of the New York City Police Department and as such issues policies, procedures, and protocols followed by his officers.
10. That upon information and belief, Police Commissioner Bratton has a policy and custom of condoning, allowing, and turning a blind eye to NYPD police officers who violate the law.
11. This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil Rights Acts, Title 42 of the United States Code, Sections 1983 and 1988, and the common law and the laws of the State of New York for malicious prosecution, abuse of process, negligent infliction of emotional distress, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.
12. This action also arises under the rights under the Constitution and laws of the State of New York.
13. Each and all of the acts of the Defendant City alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense of State law, the

statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Queens, and under the authority of their office as police officers of said state, City and County.

14. That the amount in controversy against Defendant City is in excess of jurisdictional limits of the lower Court exclusive of interest.

**NOTICE OF CLAIM:**

15. That the Notice of Plaintiff's Claim for Damages for False arrest, violation of Civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller of the City of New York on April 22, 2014.
16. The Plaintiff is ready, willing and able to submit to an inquiry concerning the justness of his claims regarding the January 23, 2014 incident described above as provided by section 50-H of the General Municipal Law.
17. That more than 30 days have elapsed since the Notice of Claims have been served upon Defendant **CITY** and other defendants and said Defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose. That on or about March 10, 2015 a 50-h

hearing was held regarding the incident complained of on January 23, 2014 before an employee, agent, and/or representative of the Defendant, **CITY**.

**FACTS**

18. That the incident evinced a grave pattern of serious legal and constitutional violations all of which gave rise to this complaint and the several causes of action subsumed thereunder all of which took place and arose in the County of Queens, City and State of New York.
19. That the incident occurred on or about January 23, 2014, whereon Plaintiff, **OSAMA E. METWALLY** was at the location between 127th Street and 128th Street on Rockaway Boulevard, Queens, New York.
20. That the Plaintiff was working as a livery cab driver.
21. That the Plaintiff was working in his capacity as a livery cab driver, through the operation of a black 2007 Chrysler with Taxi and Limousine Commission license plates.
22. That the Plaintiff was working in his capacity as a livery cab driver when he headed southbound towards John F. Kennedy Airport to pick up a pre-arranged fare at approximately 2:00pm thereof.
23. That on his way towards the aforesaid airport, Plaintiff passed a dark skinned female, hereinafter referred to as defendant detective **IBALLY STARLING**.

24. That defendant detective IBALLYS STARLING was dressed in a leather jacket, blue jeans and black boots.
25. That the same aforesaid female was standing on the sidewalk near the bus-stop thereof.
26. That the Plaintiff observed Defendant detective IBALLYS STARLING in his rear view mirror, to be making a hailing gesture, to wit she raised her right hand half way up from her body.
27. That Plaintiff accordingly stopped his vehicle and started backing up while the same defendant detective IBALLYS STARLING was walking towards the Plaintiff.
28. That when defendant detective IBALLYS STARLING approached the front passenger side of Plaintiff's vehicle, Plaintiff rolled down the window of his vehicle.
29. That before the Plaintiff could say anything, defendant detective IBALLYS STARLING stated the following: "Hi baby, I will give you a buffet for \$100. Call me."
30. That subsequently, defendant detective IBALLYS STARLING proceeded to give Plaintiff her phone number.
31. That up until that point where defendant detective IBALLYS STARLING made the aforesaid statement, the Plaintiff thought the woman was seeking a cab ride and that she was going to ask about the fare.



32. That upon hearing the aforesaid statement by defendant detective IBALLYS STARLING, the Plaintiff realized that she might be a prostitute.
33. That upon such realization, Plaintiff immediately rolled up his window and began driving away.
34. That Plaintiff traveled approximately four to five blocks to a place approximately located at 122nd Street.
35. That upon reaching the aforesaid location at or about 122nd Street, five or six police vehicles surrounded the Plaintiff's vehicle, forcing him to come to a complete stop.
36. That defendant detective YUSEFF HAMM approached Plaintiff's vehicle.
37. That defendant detective YUSEFF HAMM was a tall, black man with a slim mustache, previously referred to as JOHN DOE#2.
38. That Plaintiff was ordered to exit his vehicle.
39. That upon Plaintiff's query, the Police officers began to reprimand Plaintiff, by saying the following: "You know what you did."
40. That the Plaintiff realized that the said statement was an intimation about Plaintiff's encounter with defendant detective IBALLYS STARLING shortly before.
41. That the Plaintiff stated to the same Police Officers that he thought that defendant detective IBALLYS STARLING was a legal fare.

42. That at this point, defendant detective YUSEFF HAMM stated the following: "If it was I,

I too would have fallen in her trap."

43. That accordingly, defendant detective YUSEFF HAMM handcuffed the Plaintiff.

44. That accordingly, defendant detective YUSEFF HAMM placed Plaintiff into a van.

45. That the Plaintiff remained in the van for five hours while the police continued with their entrapment or sting operation(s).

46. That there were two different Police Officers in the van Plaintiff was placed into.

47. That while Plaintiff was waiting in the same van, he heard the Police officers make racially and religiously biased remarks about his name, to wit "His name is Osama."

48. That upon making such racially and religiously biased remarks about his name, the same Officers laughed.

49. That the Officers stated to Plaintiff, in a threatening manner, that they would put his name on a "sexual predator website."

50. That while Plaintiff was in the same van, he asked to be read his rights.

51. That upon being asked by Plaintiff to be read his rights, the Officers responded that he was "watching too many movies."

52. That while Plaintiff was in the same van, he complained that his cuffs were too tight.

53. That during the whole detention period, the Plaintiff found no relief in regards to the same aforesaid complaint, in that the handcuffs remained in a tight bind on Plaintiff.
54. That Plaintiff additionally requested to go to the bathroom.
55. That during the whole detention period, the Plaintiff found no relief in regards to the same aforesaid request, in that he was not allowed to go to the bathroom.
56. That the Plaintiff was kept detained and in custody until on or about 10am of the next day.
57. That on the same next day, Plaintiff appeared in Court.
58. That on the same next day, Plaintiff was released upon his own recognizance.
59. That the Plaintiff was arrested without any credible reason or reasonable suspicion and thereafter has been maliciously prosecuted and falsely charged with a crime.
60. That as a result of this false arrest, false imprisonment and malicious prosecution, the Plaintiff was caused to be in pain due to the tightness of the cuffs, and suffered embarrassment, shame and humiliation as a result of being detained and incarcerated.
61. That the aforesaid condition was the direct result of the Intentional acts and Negligence of the City of New York and New York City Police Department, its officers, and agents in the performance of their duties and in the scope of their employment.

**AS AND FOR FIRST CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FALSE ARREST AND FALSE IMPRISONMENT AGAINST THE DEFENDANT CITY**

62. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-61 of this Complaint as though fully plead and re-alleged in their entirety below.
63. That Defendant City did, by and through its agents, servants, employees and personnel, including but not limited to Defendants IBALLYS STARLING and YUSEFF HAMM, without probable cause, did unreasonably, notwithstanding same, conspire with one another to deprive PLAINTIFF of his freedom of movement by use of physical force/authority under the law, in that they restrained him in handcuffs and then did take him into their custody and confine and detain him in a; that Plaintiff was conscious of his loss of freedom of movement and or arrest and detention and did not consent to such confinement by Defendants, that Defendants' actions caused actual harm in the form of physical, emotional and economic injuries.
64. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**

**FOR MALICIOUS PROSECUTION AGAINST DEFENDANT CITY:**

67. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-66 of this Complaint as though fully plead and re-alleged in their entirety below.
68. The Defendant City, by and through its agents, servants and employees, including Defendants **IBALLYS STARLING** and **YUSEFF HAMM**, initiated and continued a criminal proceeding against PLAINTIFF in bad faith, insofar as these agents, upon information and belief, upon review and investigation of the facts thereof became and or were made aware or should have been aware of exculpatory and or exonerating evidence in PLAINTIFF's favor, and notwithstanding same pursued and or initiated his prosecution by presenting incomplete, incorrect information to the Prosecutor, which, because of the suppression of evidence or other law enforcement conduct undertaken in bad faith, lacked and was without probable cause
69. The criminal proceeding and prosecution thereto terminated completely in PLAINTIFF's favor all of which is not inconsistent with PLAINTIFF'S innocence
70. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual

business and avocation, was injured in his reputation in the community and the said

Plaintiff has been otherwise damaged.

71. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and was rendered emotionally and mentally distressed and so remains.

72. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**NEGLIGENCE IN TRAINING AND SUPERVISING AS AGAINST THE DEFENDANT**  
**CITY:**

73. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-72 of this Complaint as though fully plead and re-alleged in their entirety below.

74. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees.

75. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in their exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act

willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, the Plaintiff.

76. That the Defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining as and for its employees, the above named individuals **DEFENDANTS POLICE OFFICERS IBALLYS STARLING AND YUSEFF HAMM**, in that the said Defendants lacked the experience department and ability to be employed by the
77. Defendant; in that the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employee who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; in that Defendant's background and in that they hired and retained as an employee of their police department individuals whose backgrounds contained information (based information and belief) that revealed said Defendants lacked the maturity, sensibility, and intelligence to be employed by the Defendant; in that the Defendants knew of the lack of ability, experience, department and maturity of said Defendant employee when they hired him to be an employee; and, in that the Defendants their agents, servants and employees were otherwise careless, negligent, and reckless.

78. That the aforesaid occurrence, to wit: the improper and insufficient training, false arrest and imprisonment, and resulting injuries to mind and body therefrom were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.
79. That by reason of the aforesaid, the Plaintiff was injured in Mind and Body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.
80. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR FOURTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FALSE ARREST AND FALSE IMPRISONMENT AGAINST POLICE OFFICER**  
**IBALLYS STARLING**

81. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-80 of this Complaint as though fully plead and re-alleged in their entirety below.
82. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
83. Plaintiff was conscious of his confinement.
84. Plaintiff did not consent to his confinement.



85. Plaintiff's arrest and false imprisonment was not otherwise privileged.

86. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR FIFTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FALSE ARREST AND FALSE IMPRISONMENT AGAINST POLICE OFFICER**  
**YUSEFF HAMM**

87. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-86 of this Complaint as though fully plead and re-alleged in their entirety below.

88. Defendant subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

89. Plaintiff was conscious of his confinement.

90. Plaintiff did not consent to his confinement.

91. Plaintiff's arrest and false imprisonment was not otherwise privileged.

92. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FOR MALICIOUS PROSECUTION AGAINST**  
**POLICE OFFICER IBALLYS STARLING**

93. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-92 of this Complaint as though fully plead and re-alleged in their entirety below.
94. The Defendant detective **IBALLYS STARLING** initiated and continued a criminal proceeding against PLAINTIFF in bad faith, insofar as she, upon information and belief, upon review and investigation of the facts thereof became and or were made aware or should have been aware of exculpatory and or exonerating evidence in PLAINTIFF's favor, and notwithstanding same pursued and or initiated his prosecution by presenting incomplete, incorrect and or false information to the Prosecutor, which, because of the suppression of evidence or other law enforcement conduct undertaken in bad faith, lacked and was without probable cause.
95. The criminal proceeding and prosecution thereto terminated completely in PLAINTIFF's favor all of which is not inconsistent with PLAINTIFF'S innocence
96. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

97. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers

and upon information and belief, will continue to suffer great mental pain, and was

rendered emotionally and mentally distressed and so remains.

98. By reason of the above, the amount of damages sought on this cause of action exceeds the

jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FOR MALICIOUS PROSECUTION AGAINST**  
**POLICE OFFICER YUSEFF HAMM**

99. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and

every preceding paragraph 1-98 of this Complaint as though fully plead and re-alleged in

their entirety below.

100. The Defendant HAMM initiated and continued a criminal proceeding against

PLAINTIFF in bad faith, insofar as these agents, upon information and belief, upon

review and investigation of the facts thereof became and or were made aware or should

have been aware of exculpatory and or exonerating evidence in PLAINTIFF's favor, and

notwithstanding same pursued and or initiated his prosecution by presenting incomplete,

incorrect, false information to the Prosecutor, which, because of the suppression of

evidence or other law enforcement conduct undertaken in bad faith, lacked and was

without probable cause

101. The criminal proceeding and prosecution thereto terminated completely in

PLAINTIFF's favor all of which is not inconsistent with PLAINTIFF'S innocence

102. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

103. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and was rendered emotionally and mentally distressed and so remains.

104. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY FOR NEGLIGENT**  
**INFLICTION OF EMOTIONAL DISTRESS AS AGAINST POLICE OFFICER**  
**IBALLYS STARLING**

105. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-104 of this Complaint as though fully plead and re-alleged in their entirety below.

106. That the Defendant negligently and recklessly arrested Plaintiff when they knew he did not commit any crimes and engaged in conduct that is not expected or to be tolerated in a civilized society.
107. That such conduct shocks the conscious and Plaintiff demands damages therefrom.
108. That due to defendants' conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains
109. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A NINTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY FOR NEGLIGENT**  
**INFLICTION OF EMOTIONAL DISTRESS AS AGAINST POLICE OFFICER**  
**YUSEFF HAMM**

110. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-109 of this Complaint as though fully plead and re-alleged in their entirety below.
111. That the Defendant negligently and recklessly arrested Plaintiff when they knew he did not commit any crimes, and engaged in conduct that is not expected or to be tolerated in a civilized society.

112. That such conduct shocks the conscious and Plaintiff demands damages therefrom.
113. That due to defendants' conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains
114. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY FOR INTENTIONAL**  
**INFLICTION OF EMOTIONAL DISTRESS AS AGAINST POLICE OFFICER**  
**IBALLYS STARLING**

115. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-114 of this Complaint as though fully plead and re-alleged in their entirety below.
116. That the Defendant knowingly and intentionally arrested Plaintiff when they knew he did not commit any crimes, and engaged in conduct that is not expected or to be tolerated in a civilized society.
117. That such conduct shocks the conscious and Plaintiff demands damages therefrom.

118. That due to defendants' conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains
119. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A ELEVENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY FOR INTENTIONAL**  
**INFLICTION OF EMOTIONAL DISTRESS AS AGAINST POLICE OFFICER**  
**YUSEFF HAMM**

120. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-119 of this complaint as though fully plead and re-alleged in their entirety below.
121. That the Defendant knowingly and intentionally arrested Plaintiff when they knew he did not commit any crimes, and engaged in conduct that is not expected or to be tolerated in a civilized society.
122. That such conduct shocks the conscious and Plaintiff demands damages therefrom.
123. That due to defendants' conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains

124. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR TWLEFTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983 AGAINST**  
**THE DEFENDANT CITY**

125. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-124 of this Complaint as though fully plead and re-alleged in their entirety below.

126. This action arises under the Constitution of the United States, particularly the Fourth and Fourteenth Amendments of the constitution of the United States and 42 U.S.C. Sections 1983 and 1988.

127. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statuses of the State and Constitution of New York.

128. That the Plaintiff did not commit any illegal act, either before or at the time he was deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983 and the Constitution of the State of New York.



129. Such deprivations were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances, and statutes of the State of New York.
130. That Defendant City did, by and through its agents, servants, employees and personnel, including but not limited to Defendants IBALLYS STARLING and YUSEFF HAMM, without probable cause, did unreasonably, notwithstanding same, conspire with one another to deprive PLAINTIFF of his freedom of movement by use of physical force/authority under the law, in that they restrained him in handcuffs and then did take him into their custody and confine and detain him in a; that Plaintiff was conscious of his loss of freedom of movement and or arrest and detention and did not consent to such confinement by Defendants, that Defendants' actions caused actual harm in the form of physical, emotional and economic injuries
131. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
132. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
133. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FOR MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

**AGAINST DEFENDANT CITY:**

134. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-133 of this Complaint as though fully plead and re-alleged in their entirety below.
135. This action arises under the Constitution of the United States, particularly the Fourth and Fourteenth Amendments of the constitution of the United States and 42 U.S.C. Sections 1983 and 1988.
136. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.
137. That the Plaintiff did not commit any illegal act, either before or at the time he was deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983 and the Constitution of the State of New York.
138. Such deprivations were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances, and statutes of the State of New York.
139. The Defendant City, by and through its agents, servants and employees, including Defendants **STARLING** and **HAMM**, initiated and continued a criminal proceeding

against PLAINTIFF in bad faith, insofar as these agents, upon information and belief, upon review and investigation of the facts thereof became and or were made aware or should have been aware of exculpatory and or exonerating evidence in PLAINTIFF's favor, and notwithstanding same pursued and or initiated his prosecution by presenting incomplete, incorrect and or false information to the Prosecutor, which, because of the suppression of evidence or other law enforcement conduct undertaken in bad faith, lacked and was without probable cause

140. The criminal proceeding and prosecution thereto terminated completely in PLAINTIFF's favor all of which is not inconsistent with PLAINTIFF'S innocence

141. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

142. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and was rendered emotionally and mentally distressed and so remains.

143. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR FOURTEENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983 AGAINST**  
**POLICE OFFICER IBALLYS STARLING**

144. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-143 of this Complaint as though fully plead and re-alleged in their entirety below.

145. This action arises under the Constitution of the United States, particularly the Fourth and Fourteenth Amendments of the constitution of the United States and 42 U.S.C. Sections 1983 and 1988.

146. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statuses of the State and Constitution of New York.

147. That the Plaintiff did not commit any illegal act, either before or at the time he was deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983 and the Constitution of the State of New York.

148. Such deprivations were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances, and statutes of the State of New York.
149. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
150. Plaintiff was conscious of his confinement.
151. Plaintiff did not consent to his confinement.
152. Plaintiff's arrest and false imprisonment was not otherwise privileged.
153. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR FIFTEENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983 AGAINST**  
**POLICE OFFICER YUSEFF HAMM**

154. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-154 of this Complaint as though fully plead and re-alleged in their entirety below.
155. This action arises under the Constitution of the United States, particularly the Fourth and Fourteenth Amendments of the constitution of the United States and 42 U.S.C. Sections 1983 and 1988.
156. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured

to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.

157. That the Plaintiff did not commit any illegal act, either before or at the time he was deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983 and the Constitution of the State of New York.
158. Such deprivations were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances, and statutes of the State of New York.
159. Defendant subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
160. Plaintiff was conscious of his confinement.
161. Plaintiff did not consent to his confinement.
162. Plaintiff's arrest and false imprisonment was not otherwise privileged.
163. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**FOR MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**  
**AGAINST POLICE OFFICER IBALLYS STARLING**

164. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-164 of this Complaint as though fully plead and re-alleged in their entirety below.
165. This action arises under the Constitution of the United States, particularly the Fourth and Fourteenth Amendments of the constitution of the United States and 42 U.S.C. Sections 1983 and 1988.
166. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.
167. That the Plaintiff did not commit any illegal act, either before or at the time he was deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983 and the Constitution of the State of New York.
168. Such deprivations were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances, and statutes of the State of New York.
169. The Defendants **STARLING**, initiated and continued a criminal proceeding against **PLAINTIFF** in bad faith, insofar as these agents, upon information and belief, upon review and investigation of the facts thereof became and or were made aware or should have been aware of exculpatory and or exonerating evidence in **PLAINTIFF**'s favor, and

notwithstanding same pursued and or initiated his prosecution by presenting incomplete, incorrect and false information to the Prosecutor, which, because of the suppression of evidence or other law enforcement conduct undertaken in bad faith, lacked and was without probable cause

170. The criminal proceeding and prosecution thereto terminated completely in PLAINTIFF's favor all of which is not inconsistent with PLAINTIFF'S innocence

171. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

172. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and was rendered emotionally and mentally distressed and so remains.

173. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**



**FOR MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983 AGAINST**  
**POLICE OFFICER YUSEFF HAMM**

174. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-173 of this Complaint as though fully plead and re-alleged in their entirety below.
175. This action arises under the Constitution of the United States, particularly the Fourth and Fourteenth Amendments of the constitution of the United States and 42 U.S.C. Sections 1983 and 1988.
176. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.
177. That the Plaintiff did not commit any illegal act, either before or at the time he was deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983 and the Constitution of the State of New York.
178. Such deprivations were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances, and statutes of the State of New York.
179. The Defendant **HAMM**, initiated and continued a criminal proceeding against **PLAINTIFF** in bad faith, insofar as these agents, upon information and belief, upon

review and investigation of the facts thereof became and or were made aware or should have been aware of exculpatory and or exonerating evidence in PLAINTIFF's favor, and notwithstanding same pursued and or initiated his prosecution by presenting incomplete, incorrect information to the Prosecutor, which, because of the suppression of evidence or other law enforcement conduct undertaken in bad faith, lacked and was without probable cause

180. The criminal proceeding and prosecution thereto terminated completely in PLAINTIFF's favor all of which is not inconsistent with PLAINTIFF'S innocence

181. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

182. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and was rendered emotionally and mentally distressed and so remains.

183. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF OSAMA E. METWALLY**  
**CIVIL RIGHTS ACTION 42 USC §§ 1985(3)**  
**AS AGAINST THE DEFENDANT CITY AND DEFENDANT POLICE OFFICERS**  
**IBALLYS STARLING AND YUSEFF HAMM:**

184. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-183 of this summons and complaint as though fully plead and re-alleged in their entirety below.
185. The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned and deprived of her Constitutional rights as a result of this conspiracy by the NYPD arresting officers.
186. That at all times hereinafter mentioned, the Defendants **POLICE OFFICERS IBALLYS STARLING and YUSEFF HAMM** each of them, separately and in concert conspired for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the equal protection of the laws, or of equal privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York:

- a. The right of the Plaintiff to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States
  - b. The right of the Plaintiff to be informed of the nature and cause of the accusation against him so secured to them under the sixth and fourteenth amendments of the Constitution of the United States; and,
  - c. The right of the Plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.
187. That by reason of the aforesaid violations, false arrest, and false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled him to abandon his rights and privileges as provided to him in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3), 1988 in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York, subjected or caused to be subjected, a citizen of the United States or other person within the

jurisdiction, particularly the Plaintiff thereof to be deprived of his rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending her usual business and vocation and was injured in her reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

188. That by reason of the aforesaid violations, to wit the false arrest, false imprisonment caused by the Defendants, who wrongfully deprived the Plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

189. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR THE NINETEENTH CAUSE OF ACTION**  
**ON BEHALF OF OSAMA E. METWALLY**  
**FOR ATTORNEY FEES PURSUANT TO 42 USC SECTION 1988:**

**AS AGAINST THE DEFENDANT CITY AND DEFENDANT POLICE OFFICERS**  
**IBALIYS STARLING AND YUSEFF HAMM:**

190. The Plaintiff, **OSAMA E. METWALLY**, hereby incorporates by reference each and every preceding paragraph 1-189 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

191. Should Plaintiff be victorious, he intends to assert a claim for attorney fees on his federal claims pursuant to 42 USC sections 1983, 1981, 1985(3), 1988 et seq.

WHEREFORE, the plaintiff demands judgment against the defendants in an amount exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in an amount to be determined upon the trial of this action, together with the costs and disbursements of this action and any other such relief as this honorable Court may deem just, fair and proper, to wit.

- a. Compensatory damages in the sum which exceeds the jurisdictional limits of all lower courts.
- b. Punitive damages where permitted in the sum which exceeds the jurisdictional limits of all lower courts.
- c. An award of reasonable attorney's fees, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, New York  
May 13, 2019



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REHAN NAZRALI, Esq.  
305 Broadway, 14th Floor  
New York, NY 10007  
Tel: (212) 897-5882

**ATTORNEY VERIFICATION**

REHAN NAZRALI, ESQ., an attorney admitted to practice in the courts of New York State, states as follows: I am attorney of record for the Plaintiff, to wit, OSAMA E METWALLY in the within claim, I have read the foregoing SECOND AMENDED SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by the Plaintiff OSAMA E. METWALLY is that he does not reside in the county where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are information contained in the file and communications with my client(s). I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY  
May 12, 2019

  
\_\_\_\_\_  
Rehan Nazrali, Esq.  
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New York, NY 10007  
(212) 897-5882